

Tamil Nadu Registration of Marriages Rules, 2009

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State of Tamilnadu- Act

Tamil Nadu Registration of Marriages Rules, 2009

TAMILNADU

India

Tamil Nadu Registration of Marriages Rules, 2009

Rule TAMIL-NADU-REGISTRATION-OF-MARRIAGES-RULES-2009 of 2009

Published on 24 November 2009

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Tamil Nadu Registration of Marriages Rules, 2009

Published vide Notification No. G.O. Ms. No. 987, Home (Courts-IV), dated 24.11.2009

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No. SRO A-39(b)/2009. - In exercise of the powers conferred by sub-section (1) of Section 24 of the Tamil Nadu Registration of Marriages Act, 2009 (Tamil Nadu Act

21 of 2009

), the Governor of Tamil Nadu hereby makes the following Rules:-

1.
Short Title.
- These Rules may be called the Tamil Nadu Registration of Marriages Rules, 2009.
- 2.

Definitions.

(1)

In these Rules, unless the context otherwise requires,-

(a)

'Act' means the Tamil Nadu Registration of Marriages Act, 2009;

(b)

'Form' means a Form appended to these Rules;

(c)

'witness' means any person who is present at the time of solemnization of the marriage;

(d)

'Register' means the register of marriages maintained by the Registrar;

(2)

Words and expressions used but not defined in these Rules shall have the same meanings, respectively, assigned to them in the Act.

3.

Powers and duties of the District Registrar.

- The District Registrar shall,-

(a)

file the duplicate copies of the memorandum for registration of marriages sent by the Registrar and maintain them as prescribed;

(b)

provide certified extracts of the Register of marriages, certificate of registration of marriages and all the orders passed by him to the applicant;

(c)

pass suitable orders on the appeal filed before him under sub section (1) of Section 8 of the Act.

4.

Powers and duties of the Registrar.

- The Registrar shall-

(a)

verify the memorandum for registration of marriage;

(b)

verify the identity of parties to a marriage and witnesses;

(c)

issue certificate of registration of marriage;

(d)

send the copy of an order of refusal to register a marriage to the District Registrar;

(e)

send a copy of the memorandum of marriage to the District Registrar;

(f)

provide certified extracts of the Register of marriages, certificate of registration of marriage and all the orders passed by him to the applicant.

5.

Procedure for Registration of Marriage.

(1)

(a)

Every memorandum for registration of marriage shall be in Form-I and it shall be delivered in person or sent to the Registrar along with an application in Form-II within ninety days from the date of marriage. Form-I shall be supplied free of cost to the parties to a marriage by the Registrar.

(b)

An Acknowledgement for having received the memorandum for registration of marriage in Form-I along with the application in Form-II, shall be given by the Registrar.

(2)

The memorandum shall be in duplicate, signed by the parties to the marriage, the priest and two witnesses and accompanied by a fee of Rs.100/- (Rupees one hundred only), if the memorandum is sent within a period of ninety days from the date of marriage.

(3)

If the memorandum for registration of marriage is not delivered or sent to the Registrar within ninety days from the date of marriage, the parties to the marriage may deliver or send the memorandum within a further period of sixty days after the expiry of the period of ninety days along with a fee of Rs.150/- (Rupees one hundred and fifty only).

(4)

The memorandum shall also be accompanied by the following documents issued by the competent authority to the parties and witnesses, namely:-

(a)

(i)

Copy of the Voter's Identity Card issued by the Election Commission of India, or

(ii)

Copy of passport; or

(iii)

Copy of PAN/GIR Card issued by the Income Tax Department; or

(iv)

Copy of Ration Card; or

(v)

Copy of Photo Identity Card issued by the Government; or Government Undertakings or Local Bodies; or

(vi)

Copy of Pass Book issued by Banks or Post Offices (With Photo); or

(vii)

Copy of Pension Book; or

(viii)

Copy of certificate issued to handicapped persons; or

(ix)

Copy of Gun licence; or

(x)

Copy of identity card issued to "Freedom fighters".

(b)

(i)

Copy of birth certificate; or

(ii)

School/College leaving certificate; or

(iii)

any other proof of age of parties to the marriage; and

(c)

Marriage invitation card or any other proof of place of 'Marriage'.

(5)

On receipt of a memorandum, the Registrar shall scrutinise the same and if on scrutiny it is found that the memorandum is defective or insufficient in particulars or not accompanied with the fee or the documents required for scrutiny, he shall return the same to the parties to the marriage for rectification of the defects and resubmission of the memorandum within seven days from the date of receipt of the memorandum by the parties to the marriage.

(6)

After verification of the memorandum and after being satisfied about the identity of the parties to the marriage and witnesses, the Registrar shall file the memorandum in the File of memorandum in the format given below consisting of blank butts serially numbered:-

The memorandum

is filed at Serial No..... of 20
?.....on page of volume ?.....of the File
of memorandum of marriages maintained under the Tamil Nadu
Registration of Marriages Act, 2009.

Dated the.....day of
?.....20.....

Signature

Registrar of Marriages

(7)

The Registrar of Marriages after filing the memorandum as contemplated in sub-rule (6) shall cause to scan the memorandum in the electronic storage device and on filing the memorandum along with the application the Registrar shall register the marriage and issue a certificate of registration of marriage in Form-III and deliver it to the parties to the marriage either in person or by post in the self addressed stamped envelope given by the parties.

(8)

In case, the Registrar is not satisfied about the identity of the parties or the witnesses, or about the correctness of the statements made in the memorandum, the Registrar may, after hearing the parties and after recording the reasons in writing, pass an order of refusal to register the marriage in Form-IV and send a copy thereof to the District Registrar.

6.

Duplicates to be forwarded to the District Registrar.

(1)

On or before the fifth day of each month, the Registrar shall send to the District Registrar, the duplicate copies of all the memoranda received by him during the preceding month, affixing at the end of the last of such copies a certificate as follows:-

"Certified that the memorandum, which bear Serial No..... to Serial No..... are duplicate of all the memoranda filed in the file of memorandum maintained by me under the Tamil Nadu Registration of Marriages Act, 2009 during the month of

Dated the.....day of
?.....20.....

Signature

Registrar of Marriages"

(2)

on receipt of the duplicate copies of memorandum the District Registrar shall file them in the registers similar to those maintained by the Registrars.

7.

Form of receipt.

- The Registrar shall issue a receipt for the fees received by him in the following form. The receipt shall be generated in duplicate through computer which shall be electronically numbered consecutively:-

Receipt

(Under the Tamil

Nadu Registration of Marriages Rules, 2009)

No.....

O/o. The Registrar of

Marriages,

?.....(station)

Received fees from

Thiru/Tmt.....(Memorandum

No.....) towards

Sl.No.

Item

(Rs.)

(i)

For registration of Memorandum of marriage

(ii)

For certified extracts from the Register

(iii)

For certified copy / copies of

(iv)

For any other

Total

Rupees in words [Rupees

_____]]

Dated the _____ day of _____ 20____.

Signature _____

Registrar of Marriages.

8.

Transmission of memorandum received in a wrong office.

(1)

If the Registrar receiving a memorandum has no jurisdiction to receive the same, he shall transmit it to the Registrar having such jurisdiction and inform the persons who had sent or delivered the memorandum accordingly.

(2)

If the Registrar receiving such memorandum has no jurisdiction but inadvertently files the same in the register maintained by him, he shall send a certified copy thereof together with the copy of endorsement of filing recorded thereon to the Registrar having jurisdiction for the purpose of filing and inform the persons who had sent or delivered the memorandum accordingly. He shall then make a suitable endorsement on the memorandum indicating the action taken by him and for cancellation of registration from his register.

(3)

The Registrar on receipt of the memorandum of a certified copy of the memorandum under sub-rules (1) and (2) shall file it in the register maintained by him without levying any additional fee and register the marriage following the procedure and inform the action taken by him to the District Registrar.

9.

Correction in the Register of Marriages and Certificate of Registration.

- Any correction or any omission or mistake in the register of marriages or in the certificate, of registration shall be done by the Registrar after satisfying the genuineness of the correction by a foot-note without any alteration of the original entry and it shall be signed and dated by him.

10.

Appeals.

(1)

An appeal to the District Registrar under sub-section (1) of Section 8 of the Act against the order of the Registrar under Section 7 of the Act may be made within a period of thirty days from the date of receipt of such order along with a copy of that order and with necessary documents, referred to in sub-rule (4) of rule 5.

(2)

The District Registrar after giving an opportunity of being heard to the aggrieved parties concerned shall pass an order, after recording the reasons in writing, directing the Registrar to register the marriage or confirming the order of the Registrar, as the case may be.

(3)

An appeal to the Registrar - General under Section 9 of the Act against the order of the District Registrar under sub-section (2) of Section 8 of the Act may be made within a period of thirty days from the date of receipt of such order along with a copy of that order and with necessary documents, referred to in sub-rule (4) of rule 5.

(4)

The Registrar General after giving an opportunity of being heard to the aggrieved parties concerned shall pass an order,

after recording the reasons in writing, directing the Registrar to register the marriage or confirming the order of the District Registrar as the case may be.

11.

Form of Register of Marriages and manner of keeping it.

(1)

The Registrar shall maintain a register of marriages in Form V for every year. Information regarding refusal to register a marriage shall be maintained separately in a register in Form VI.

(2)

The Registrar shall certify under his signature on the title page of every blank register issued to him, the number of pages actually contained in such register and shall note the date on which the register was received and opened by him.

12.

Inspection of registers and obtaining certified copies thereof.

- The Register of marriages shall be kept open for inspection of public. Any person desirous of inspecting the register may, on an application made in this behalf to the Registrar and on payment of fees as specified in the Table below, be allowed to do so.

Appendix

Form I

[See Rule 5(1)(a)]

Memorandum for Registration of Marriage.

("?" wherever applicable)

1.

Husband Details

(a) Full Name of the Husband (as per records)

{|

|-

| (b) Religion

| Hindu

| Christian

| Muslim

| Others

|-

|

| If Select ?Others? Specify :

| {|

|-

|

|}

|-

| (c) Age and Date of Birth

| {|

|-

|

|

| /

|

|

| /

|

|

|

|

```
}
| {
|-
|
|
|
|
| Years
|-
| (d) Marital status before the date of Marriage
| Bachelor
| Married
| Divorcee
| Widower
|-
|
| Others
| Specify
| {
|-
|
|
|
|
| if Married, mention No. of wives alive
| {
|-
|
|
|
|
(e) Occupation
{|
|}
(f) Residential Address
{|
|}
1A.
Husband's Father
(a) Full Name
{|
|-
| (b) Age
| {
|-
|
|
|
|
| Years
| Alive/Deceased
|}
(c) Address (if Alive)
```

{|

|}

1B.

Husband's Mother

(a) Full Name

{|

|-

| (b) Age

| {|

|-

|

|

|

|}

| Years

| Alive/Deceased

|}

(c) Address (if Alive)

{|

|}

2.

Wife Details

(a) Full Name of the Wife (as per records)

{|

|-

| (b) Religion

| Hindu

| Christian

| Muslim

| Others

|-

|

| If Select ?Others? Specify :

| {|

|-

|

|}

|-

| (c) Age and Date of Birth

| {|

|-

|

|

| /

|

|

| /

|

|

|

|

}
{
}
Years
-
(d) Marital status before the date of Marriage
Spinster
Divorcee
Widower
-
Others
Specify
{
-
}
}
(e) Occupation
{
}
(f) Residential Address
{
}
Wife's Father
(a) Full Name
{
-
(b) Age
{
-
}
Years
Alive/Deceased
}
(c) Address (if Alive)
{
}
2B.
Wife's Mother
(a) Full Name
{
-
(b) Age

| {

| -

|

|

|

| }

| Years

| Alive/Deceased

| }

(c) Address (if Alive)

{

}

3.

Nri-Additional Details of Husband

i. (a) Passport

Number

(b) Passport Issued by

{

| -

|

| -

|

| (c) Passport valid up to

| {

| -

|

|

| /

|

|

| /

|

|

|

|

| }

| -

|

| ii. (a) Visa issued

to the country at the time of registration

|

| -

|

| (b) Visa valid up to

| {

| -

|

|

| /

|

|

| /
|
|
|
|
|
}
iii. (a) Type of
Resident
Permanent/Temporary
-
(b) if permanent, give details
-
iv. (a) Social
Security No.
(If any)
}
4.
Nri-Additional Details of Wife
i. (a) Passport
Number
(b) Passport Issued by
{
-
(c) Passport valid up to
{
-
/
/
}
-
ii. (a) Visa issued
to the country at the time of registration

|-

|

| (b) Visa valid up to

| {

|-

|

|

| /

|

|

| /

|

|

|

|

|}

|-

|

| iii. (a) Type of

Resident

| Permanent/Temporary

|-

|

| (b) if permanent, give details

|

|-

|

| iv. (a) Social

Security No.

(If any)

|

|}

5.

Other Details

Name and Address of the Priest who solemnized
the Marriage/was present in the marriage.

{

|}

6.

Place, namely, the Village, Taluk and District where the
marriage was solemnized, with full address

{

Steel

Village

Taluk

|}

7.

The date on which marriage was solemnized

{

/

/

l}

8.

Whether the marriage was
previously registered under any other Act or Personal Law
if "YES" provide details:

(Attach-Certificate of or Extract of Marriage Register)

{l

Yes/No

l}

9. We hereby declare:-

(i)

that a valid marriage was solemnized between us and that the marriage is capable of being registered under Section 3 of the Tamil Nadu Registration of Marriages Act, 2009;

(ii)

that the conditions prescribed in the respective personal laws intended for the solemnization of marriages have been satisfied;

(iii)

that the particulars given in this memorandum are true to the best of our knowledge and belief;

(iv)

that the two witnesses who have signed below were present at the time of the solemnization of the marriage; and

(v)

that no dowry was demanded or given or taken.

Station:

Date:

10. Name and address of Witnesses:

Sl. No.

Name

Father's/Husband's name and Address

ID Details

Signature

1.

2.

Form II

[See rule 5(1) (a)]

Application for filing Memorandum of Marriage.....

.....
To,

The Registrar of Marriages,

Sub: Registration of marriage.

Sir,

A marriage has been solemnized between us on at and we request that the particulars of our marriage be entered in the Register of Marriages and that a Certificate of Registration of Marriage be issued to us.

We hereby declare,-

(1)

that a valid marriage was solemnized between us and that the marriage is, capable of being registered under section 3 of the Tamil Nadu Registration of Marriages Act, 2009.

(2)

that the conditions laid down in our Personal Law have been satisfied.

(3)

that the particulars given in application are true to the best of our knowledge and belief,

(4)

that a memorandum of marriage duly filled in (in duplicate) along with the prescribed fees and documents, is enclosed.

Signature:.....

(Husband)

.....

(Wife)

Place:

Date:

Encl:-(1) Memorandum of Marriage.

(2)

Prescribed fees,

(3)

Other documents:- (a).....

(b)

.....

(c)

.....

Instructions For Filling Up The Application And Memorandum

(1)

The Memorandum shall be given in duplicate.

(2)

Passport size photo of both the parties to the marriage shall be affixed in the Memorandum and another copy shall be enclosed.

(3)

Any one of the proofs mentioned in the rules shall be given to prove the following:-

(i) Name

}

For the Parties to the marriage

(ii) Age

(iii) Residence

(iv) Date and Place of marriage

(v) Photo identity for the witnesses and for the parties to the marriage.

(4)

Self addressed and sufficiently stamped envelope shall be given.

(5)

In Item 1(d) of the Memorandum, the marital status shall be indicated by the parties to the marriage as per their personal law.

(6)

The fees shall be paid by Cash/D.D./Bankers' cheque, drawn in favour of the Registrar of Marriages.

Government of Tamil Nadu

Form III

Certificate of Registration of Marriage

[See rule 5(7)]

No.....

{

Passport size husband's photo

|

Passport size Wife's photo

}

This is to Certify that Thiru.....(Name of Husband) S/o. Thiru.....residing atand Tmt.....(Name of wife) D/o. Thiru.....residing at.....

have furnished the particulars in Memorandum declaring that their marriage has been solemnized on.....at.....(place) and that the same has been registered this day.....of.....2.....at Serial No.....of 2.....of Register of Marriages maintained under the Tamil Nadu Registration of Marriages Act, 2009.

Signature of Registrar of Marriages.

Place:

Date:

Form IV

[See rule 5(8)]

Order of refusal for registration of a marriage

No.....

I, Registrar of Marriages,.....after scrutiny of memorandum and other documents submitted with the same and after hearing the parties on the.....day of.....,20.....refuse to register the said marriage between.....(Husband), and.....(Wife) for the following reasons.....

Place:

Date:

Signature:.....

Registrar of Marriages.

Seal.

Form V

[See sub-rule (1) of rule II.]

Register of Marriages

Register of Marriages for the year.....

Sl. No.

Date of marriage and place of marriage.

Name of husband and his address.

His age at the time of marriage.

Religion of Husband.

Name of wife and her address.

Her age at the time of marriage.

Religion of wife.

Date of Registration.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Form VI

[See sub-rule (1) of rule II.]

Register of refusal of Marriages

Register of refusal of Marriages for the year.....

Sl. No.

Date of marriage and place of marriage.

Name of husband and his address.

His age at the time of marriage.

Religion of Husband.

Name of wife and her address.

Her age at the time of marriage.

Religion of wife.

Date of Refusal.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Form VII

(See rule 15)

Application for obtaining Certified copy/Certified extract

Date:

From: [Name and address of the person(s)]

To

The Registrar of Marriages,

Sub: Certified copy/Certified extract

Sir,

I, the undersigned, request you that-

(1)

_____ (please write the number) certified copy/certified extract of the following document(s) may please be provided to me at the earliest.

*(a) a certificate of registration of a marriage

*(b) the extract of the register of marriages

(2)

The Particulars of Marriage-

(i)

Name of the husband

(ii)

Name of the wife

(iii)

Date of registration of marriage

(iv)

Date and number of a certificate of registration of marriage

.....

(3)

The fees of Rs (rupees.....) is enclosed herewith.

Yours faithfully,

Place:

Date :

*Strike out which is not applicable.

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